

VCU321658 Lal, Chaman vs. Singh, Avtar

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-22

Motion: Motion for Order Directing Notice of Buy Out Right

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Re: Lal, Chaman vs. Singh, Avtar

Case No.: VCU321658

Date: September 22, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Order Directing Notice of Buy Out Right

Tentative Ruling: To grant the motion

Facts

On May 22, 2025, Plaintiff filed a complaint for partition of (1) commercial property at 814 E. Date Ave ("Gas Station Property") and (2) multi-family property located at 770-778 E. Date Ave ("The Multi-Family Property").(Complaint ¶1.)

On June 27, 2025, Defendant filed a cross-complaint seeking partition by sale of the same property, dissolution of partnership and quiet title.

On January 6, 2026, this Court granted Plaintiff's motion to appoint an appraiser to determine the fair market value of the properties pursuant to Partition of Real Property Act ("PRPA"), Code of Civil Procedure §§ 874.311, et seq. and the Court appointed Jake Hower.

Further, Plaintiff requested that the Court set a hearing on valuation 60 days from the date of appointment of the appraiser for the hearing on valuation and providing notice to the parties of the value pursuant to Code of Civil Procedure section 874.316(g). The Court st that hearing for March 3, 2026.

On April 27, 2026, the verified appraisals for the properties at issue were filed with this Court.

On April 29, 2026, Cross-Complainant dismissed the first cause of action for partition for sale in the cross-complaint.

On July 7, 2026, this Court granted Plaintiff's motion to adopt the values set forth in the appraisal as follows: The Multi-Family Property was valued at \$400,000, and the Gas Station Property was valued at \$2,850,000 inclusive of the property, the business enterprise, furniture, fixtures, and equipment, but not the business inventory.

On August 26, 2026, Plaintiff filed this motion to for an order directing notice of buyout right pursuant to Code of Civil Procedure section 874.317(a) sent to Plaintiff.

In opposition, Defendant again argues that Defendant is not a co-tenant requesting a partition by sale based on the dismissal of that cause of action in the cross-complaint and that a sale by auction is the proper method of proceeding in this matter.

Authority and Analysis

"If any cotenant requested partition by sale, the court shall, after the determination of value under §874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." (Code Civ. Proc. §874.317(a).)

"Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale." (Code Civ. Proc. §874.317(b).)

"If the court sends notice to the parties under paragraph (1) or (2) of subdivision (d), the court shall set a date, not sooner than 60 days after the date the notice was sent, by which electing cotenants shall pay their apportioned price into the court." (Code Civ. Proc. §874.317(e).)

"If the court does not order partition in kind under subdivision (a), the court shall order partition by sale pursuant to Section 874.320 or, if no cotenant requested partition by sale, the court shall dismiss the action." (Code Civ. Proc. §874.318(b).)

Plaintiff notes that subdivision (a) has only two requirements: that a cotenant request partition by sale and that the Court determine the value under Code of Civil Procedure section 874.316. Plaintiff further argues that both conditions have been met here.

It does not appear in dispute that the second condition has been met, whereby the Court confirmed the value of the properties pursuant to appraisals under section 874.316.

As to the first, Plaintiff argues that Defendant/Cross-Complainant's filing of the cross-complaint containing the cause of action for partition by sale is sufficient to meet the definition of "requested" under section 874.317(a). Dismissal of this cause of action, Plaintiff argues, does not change whether partition by sale was requested. Additionally, Plaintiff notes the cross-complaint's prayer still seeks relief via sale to a third party and appointment of a receiver. The Court agrees that the plain language of subsection (a) does not require that a party prevail on a cause of action for partition by sale, maintain such a cause of action or do anything except what has occurred here: requested sale by partition.

Additionally, the Court does not find that Plaintiff here has requested partition by sale in the complaint, which therefore does not foreclose on Plaintiff's right to purchase pursuant to section 874.317(a). Rather, Plaintiff's complaint requests a judicial determination of the appropriate manner of partition.

Therefore, the Court grants the motion and the Court will send the notice required by Code of Civil Procedure section 874.317(a) as to each Property.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.